The area described aggregates 65 acres in Lincoln County.

2. The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permits, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

JACK O. HORTON,
Assistant Secretary of the Interior.

MARCH 16, 1973.

[FR Doc.73-5603 Filed 3-22-73;8:45 am]

[Public Land Order 5340]

[Idaho 5503]

IDAHO

Revocation of National Forest Administrative Site Withdrawal

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

1. The Secretary's Order of June 6, 1908, withdrawing the following described national forest land for use as an administrative site is hereby revoked:

NEZPERCE NATIONAL FOREST

BOISE MERIDIAN

Fish Creek Administrative Site

T. 29 N., R. 3 E.,
Sec. 22, SW¼NW¼, NW¼SW¼.

The area described aggregates 80 acres in Idaho County.

2. At 10 a.m. on April 21, 1973, the land shall be open to such forms of disposition as may by law be made of national forest lands.

JACK O. HORTON,
Asistant Secretary of the Interior.

MARCH 16, 1973.

[FR Doc.73-5604 Filed 3-22-73;8:45 am]

[Public Land Order 5341]

[Riverside 06454]

CALIFORNIA

Transferring Lands From National Aeronautics and Space Administration to Department of Navy (San Diego Missile Test Site)

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

1. The following described lands withdrawn by Executive Orders Nos. 8790 and 8791 of June 14, 1941, for use of the Department of the Navy, which were transferred to the jurisdiction of the Department of the Air Force by Public Land Order No. 2748 of August 8, 1962, and further transferred to the jurisdiction of the National Aeronautics and Space Administration by Public Land Order No. 3749 of July 26, 1965, are hereby transferred to the jurisdiction of the Department of the Navy:

SAN BERNARDINO MERIDIAN

T. 14 S., R. 1 W.,
Sec. 31, N½NE¼;
Sec. 32, NW¼NW¼, N½SW¼, SE¼SW¼, S½SE¼;
Sec. 33, W½W½.
T. 15 S., R. 1 W.,
Sec. 4, lots 4, 5, and 10;
Sec. 5, lots 1, 2, 3, 5, S½NE¼, SE¼NW¼, E½SW¼, SW¼SE¼, N½SE¼;
Sec. 6, lots 1, 6, 7, E½SW¼, W½SE¼;
Sec. 7, lot 1, NW¼NE¼, SE¼NE¼.
T. 15 S., R. 2 W.,
Sec. 11, lot 1;
Sec. 12, N½NE¼, NE¼NW¼.

The areas described aggregate 1,674.86 acres in San Diego County.

2. The withdrawal made by this order does not alter the applicability of the public land laws governing the use of the lands under lease, license, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

JACK O. HORTON,
Assistant Secretary of the Interior.

MARCH 16, 1973.

[FR Doc.73-5605 Filed 3-22-73;8:45 am]

Title 49—Transportation

CHAPTER I—DEPARTMENT OF TRANSPORTATION

SUBCHAPTER A—HAZARDOUS MATERIALS REGULATIONS BOARD

[Docket No. HM-107; Amdts. 173-71, 177-25]

PART 173—SHIPPERS

PART 177—SHIPMENTS MADE BY WAY OF COMMON, CONTRACT, OR PRIVATE CARRIERS BY PUBLIC HIGHWAY

Department of Defense Material Sold to a Shipper

The purpose of this amendment to the Hazardous Materials Regulations of the Department of Transportation is to permit shipment of hazardous materials sold by the Department of Defense in packagings of equal or greater strength and efficiency than those specified for hazardous materials in 49 CFR Parts 170–189.

At the present time, the Hazardous Materials Regulations Board is receiving a substantial number of requests for special permits to allow shipment of materials bought from the Department of Defense that would be other than "* * * offered by or consigned to the Departments of the Army, Navy, and Air Force of the United States Government." It has been recently substantiated that many of these materials are in packagings that meet or exceed the requirements of Parts 173 and 178. However, the packagings are marked only in conformance with military specifications that correspond to Department of Transportation specifications.

This amendment permits the Department of Defense to execute certificates to indicate that packagings meet or exceed corresponding specifications of this Department. Since this amendment imposes no added burden on any person and no discernible change is being made in the level of safety requirements for shipments to which it pertains, notice and public procedure are unnecessary.

In consideration of the foregoing, 49 CFR Parts 173 and 177 are amended as follows:

I. Part 173, Shippers, is amended as follows:

(A) In Part 173 table of contents, § 173.7 is amended to read as follows:

§ 173.7 U.S. Government material.

(B) In § 173.7, the heading and paragraph (a) are amended to read as follows:

§ 173.7 U.S. Government material.

(a) Shipments of hazardous materials offered by or consigned to the Department of Defense (DOD) of the U.S. Government must be packaged, including limitations of weight, in accordance with the regulations in this subchapter or in containers of equal or greater strength and efficiency as required by DOD regulations.

(1) Hazardous materials sold by the DOD in packagings that are not marked in accordance with the requirements of this subchapter my be shipped from DOD installations if the DOD certifies in writing that the packagings are equal to or greater in strength and efficiency than the packaging prescribed in this subchapter. The shipper shall obtain such a certification in duplicate for each shipment. He shall give one copy to the originating carrier and retain the other for no less than 1 year.

* * * * *

II. Part 177, Shipments made by way of common, contract, or private carriers by public highway, is amended as follows:

(A) In Part 177 table of contents, § 177.806 is amended to read as follows:

Sec.
177.806 U.S. Government material.

(B) In § 177.806, the heading and paragraph (a) are amended to read as follows:

§ 177.806 U.S. Government material.

(a) Shipments of hazardous materials offered by or consigned to the Department of Defense (DOD) of the U.S. Government must be packaged, including limitations of weight, in accordance with the regulations in this subchapter or in containers of equal or greater strength and efficiency as required by DOD regulations.

(1) Hazardous materials sold by the DOD in packagings that are not marked in accordance with the requirements of this subchapter may be shipped from DOD installations if the DOD certifies in writing that the packagings are equal to or greater in strength and efficiency than the packaging prescribed in this subchapter. The shipper shall obtain such a certification in duplicate for each shipment. He shall give one copy to the originating carrier and retain the other for no less than 1 year.

* * * * *